

SENATE No. 97

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the improvement of the data collection of adult and youth consumption of marijuana.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 97

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 97) of Patrick M. O'Connor for legislation to further regulate the data collection of adult and youth consumption of marijuana. Cannabis Policy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 156 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the improvement of the data collection of adult and youth consumption of marijuana.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 17 of chapter 94G of the General Laws is hereby amended by
2 striking clause (a) and inserting in place thereof the following:

3 (a) The commission shall develop a research agenda in order to understand the social and
4 economic trends of marijuana in the commonwealth, to inform future decisions that would aid in
5 the closure of the illicit marketplace and to inform the commission on the public health impacts
6 of marijuana. The research agenda shall include, but not be limited to: (i) patterns of use,
7 methods of consumption, sources of purchase and general perceptions of marijuana among
8 minors, among college and university students and among adults; (ii) incidents of impaired
9 driving, hospitalization and use of other health care services related to marijuana use, including a

report of the state of the science around identifying a quantifiable level of marijuana-induced impairment of motor vehicle operation and a report on the financial impacts on the state healthcare system of hospitalizations related to marijuana; (iii) marijuana-related Emergency Department visits and hospitalizations to include those accessing psychiatric emergency services; (iv) prevalence of cannabis-induced psychosis and cannabis use disorder in Massachusetts; (v) testing for THC and THC metabolites, including 11-OH THC, in all suicides and homicide perpetrators; (vi) prevalence of marijuana use by those in the juvenile justice population, as measured by testing for THC and 11-OH THC, at the time of entry into the juvenile justice system; (vii) economic and fiscal impacts for state and local governments including the impact of legalization on the production and distribution of marijuana in the illicit market and the costs and benefits to state and local revenue; (viii) ownership and employment trends in the marijuana industry examining participation by racial, ethnic and socioeconomic subgroups, including identification of barriers to participation in the industry; (ix) a market analysis examining the expansion or contraction of the illicit marketplace and the expansion or contraction of the legal marketplace, including estimates and comparisons of pricing and product availability in both markets; (x) a compilation of data on the number of incidents of discipline in schools, including suspensions or expulsions, resulting from marijuana use or possession of marijuana or marijuana products; and (xi) any Massachusetts assessment of youth substance use shall include questions about the types and consumption methods of marijuana products being used, frequency of marijuana use, and marijuana-related psychosis symptoms; and (xii) a compilation of data on the number of civil penalties, arrests, prosecutions, incarcerations and sanctions imposed for violations of chapter 94C for possession, distribution or trafficking of marijuana or marijuana

- 32 products, including the age, race, gender, country of origin, state geographic region and average
- 33 sanctions of the persons charged.